

A

M E A S U R E

PASSED BY

The National Assembly of the Church of England

To transfer the dignity and status of the Cathedral of the Diocese of Guildford from the Church of the Holy Trinity in Guildford to the Church of the Holy Spirit in Guildford and for purposes connected therewith. [13th April 1938.]

1.—(1) The Church of the Holy Trinity (in the Constitution and Statutes relating thereto described as the Cathedral Church of the Holy and Undivided Trinity) in the borough and diocese of Guildford shall cease to be the Cathedral Church of the said diocese, and the Church of the Holy Spirit in the said borough and diocese shall become and be the Cathedral Church of the said diocese.

Transfer of
Cathedral
status and
dignity.

(2) Sections three and four of the Archdeaconry of Surrey Measure, 1930, and any schemes relating to the Cathedral Church of Guildford made under the said section four shall have effect as if for references therein to the Cathedral Church of Guildford there were substituted references to the Cathedral Church of the Holy Spirit, Guildford.

20 Geo. 5,
No. 2.

(3) Section seven of the Diocese of Winchester (Division) Measure, 1923, and the Order of His late Majesty King George the Fifth in Council made thereunder and dated the twenty-second day of April nineteen hundred and twenty-seven shall cease to have effect so far as that section and that Order relate to the Cathedral Church of Guildford.

14 & 15
Geo. 5, No. 6.

2.—(1) The Cathedral Measures, 1931 and 1934, shall have effect as if—

Application
of the
Cathedral
Measures to
the new
Cathedral.

(i) the Church of the Holy Spirit, Guildford, was one of the cathedral churches mentioned in the Second Schedule to the Cathedrals Measure, 1931; and

- (ii) the Council constituted by the Scheme for the Cathedral Church of Guildford (hereinafter referred to as the original scheme) made under the said Measures and confirmed by an Order in Council dated the twenty-eighth day of May, nineteen hundred and thirty-six, were in relation to the Church of the Holy Spirit, Guildford, the consenting body under section three of the Cathedrals Measure, 1931.

(2) A scheme under the said Measures as extended by this section—

- (i) may provide for the transfer to the Chapter constituted thereunder of any property vested in the Chapter constituted under the original scheme;
- (ii) shall provide that those persons who, immediately prior to the date when such scheme comes into operation, are honorary canons in the Cathedral Church of the Holy Trinity, Guildford, shall be the first honorary canons in the Cathedral Church of the Holy Spirit, Guildford; and
- (iii) may provide that appointments of assistant clergy, organists, choir, vergers and other lay officers in the Cathedral Church of the Holy Spirit, Guildford, shall be made in like manner as they were formerly made in the Church of the Holy Trinity, Guildford.

(3) This section shall come into operation on the passing of this Measure, but any scheme made thereunder shall not come into operation until the execution of the document mentioned in section four of this Measure, and on the coming into operation of the scheme so made the original scheme shall cease to have effect.

Resignation
of Provost.

3. The person who is the incumbent of the benefice of Holy Trinity with St. Mary and St. Luke, Guildford, may resign the dignity of Provost of the Cathedral without prejudice to his status or rights as incumbent of the said benefice; but if he does not so resign the said dignity before the assignment of a separate ecclesiastical district to the Church of the Holy Spirit, he shall become and be the first incumbent of the said church, and the benefice of Holy Trinity with St. Mary and St. Luke, Guildford,

shall thereupon become vacant in like manner as if he had resigned therefrom.

4.—(1) As soon as all the following conditions have been fulfilled, that is to say :—

Commence-
ment.

- (i) the site of the Church of the Holy Spirit has been conveyed to the Ecclesiastical Commissioners;
- (ii) a portion of the Church of the Holy Spirit, sufficient in the opinion of the Ecclesiastical Commissioners to become a Parish Church, has been erected;
- (iii) the patronage of the said Church of the Holy Spirit has been vested by agreement in the Bishop of Guildford;
- (iv) the said portion of the Church of the Holy Spirit has been consecrated;
- (v) a separate Ecclesiastical District has been assigned by His Majesty in Council to the said Church of the Holy Spirit under the Church Building Acts;

the Bishop of Guildford shall certify the fact by a document under his hand and seal, and this Measure except section two thereof shall come into operation immediately upon the execution of the said document.

(2) The said document, when executed, shall be deposited in the Registry of the diocese of Guildford and shall remain in that Registry unless and until the Bishop, with the consent of the Chapter, shall make other provision for its safe custody.

5. This Measure may be cited as the Guildford Short title. Cathedral Measure, 1938.

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